

Dhirendra Singh v. State of U.P. — writ for bill correction declined for clause 6.5

High Court of Judicature at Allahabad · Division Bench · 9 January 2017 · Writ - C No. 609 of 2017 · **Writ dismissed; relegated to Clause 6.5 statutory remedy**

HEADNOTE

A Division Bench declined to entertain a writ seeking correction of an electricity bill issued by Poorvanchal Vidyut Vitran Nigam Ltd., holding that Clause 6.5 of the U.P. Electricity Supply Code, 2005 is a statutory remedy, and dismissed the petition.

FACTUAL SUMMARY

Dhirendra Singh filed Writ-C No. 609 of 2017 in the Allahabad High Court seeking correction of an electricity bill issued by Poorvanchal Vidyut Vitran Nigam Ltd. The State of Uttar Pradesh and two others were arrayed as respondents. Counsel for the respondents submitted that the petitioner had a statutory remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005. Dilip Gupta and Siddhartha Varma, JJ. heard the petition on 9 January 2017.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

writ-jurisdiction-bill-correction

HOLDING

A writ petition filed primarily for correction of an electricity bill will not be entertained where Clause 6.5 of the U.P. Electricity Supply Code, 2005 furnishes a statutory remedy; the petition is dismissed on that ground.

¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A Division Bench declined to entertain a writ seeking correction of an electricity bill issued by Poorvanchal Vidyut Vitran Nigam Ltd., holding that Clause 6.5 of the U.P. Electricity Supply Code, 2005 is a statutory remedy, and dismissed the petition. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL

The billed amount was not examined on merits; the petitioner was left to the Clause 6.5 remedy. ¶ 1